

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: August 19, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER REGARDING DISCOVERY CONFERENCE

On August 18, 2025, Respondents' counsel sent a letter asking whether the discovery conference scheduled for August 21, 2025 would include argument on the pending motion to compel [Dkt. 42]. The parties must be prepared to discuss the motion to compel, the most recent status report and motion to extend deadlines [Dkt. 43], and any other matters related to the progress of discovery in this case. Such topics include, for example: the volume of documents/ESI remaining to be searched or reviewed (including quality-control and privilege review); any obstacles encountered in reviewing or producing documents/ESI; the status of depositions including the anticipated number of depositions remaining and any obstacles related to scheduling them; and the status of outstanding subpoenas.

The parties are reminded not to send letters. Any request for an order – including a clarifying order – must be by motion. 46 C.F.R. § 502.69(a). A motion with a correct caption and descriptive title makes filing and routing more efficient. In the future, the Office of the Secretary may reject letter motions.

SO ORDERED.

**ALEX
CHINTELLA**

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ALEX CHINTELLA
Date: 2025.08.19
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Alex M. Chintella
Administrative Law Judge